

Chapter 535

IDLING OF DIESEL-POWERED MOTOR VEHICLES

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[HISTORY: Adopted by the County Council of Allegheny County 8-19-2003 by Ord. No. 40-03. Amendments noted where applicable.]

§ 535-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

DIESEL-POWERED MOTOR VEHICLE — A self-propelled vehicle designed for transporting persons or property which is propelled by a compression-ignition type of internal-combustion engine.

HEAVY-DUTY — Any motor vehicle with a gross vehicle weight of more than 8,500 pounds or with a passenger-carrying capacity of more than 12 persons.

IDLING — The operation of an engine in the operating mode where the engine is not engaged in gear, where the engine operates at a speed at the revolutions per minute specified by the engine or vehicle manufacturer, or when the accelerator is fully released and there is no load on the engine.

MOTOR VEHICLE — All vehicles propelled other than by muscular power except such vehicles as run only on rail or tracks.

PERSON — Any individual, natural person, syndicate, association, partnership, firm, corporation, institution, agency, authority, department, bureau, or instrumentality of federal, state or local government or other entity recognized by law as a subject of rights and duties.

§ 535-2. Restrictions on idling motor vehicles.

The following provisions shall apply to the operation of heavy-duty diesel-powered motor vehicles:

- A. No person shall permit, cause, suffer or allow the engine of a heavy-duty diesel-powered motor vehicle to idle prior to, during layover between, or at the conclusion of, any trip or route for any period of time beyond that which is reasonably required to attain, or to secure from, normal operating conditions. The Board of Health shall promulgate rules and regulations, subject to the approval of the County Council, regarding a maximum allowable period of idling. Such rules and regulations shall also define exceptions to the maximum allowable period that consider extreme temperatures.
- B. No person shall permit, cause, suffer or allow the engine of a heavy-duty diesel-powered motor vehicle to be accelerated while idling unless such action is taken in order to operate other equipment.¹

1. Editor's Note: Former § 56-3, Idling of diesel-powered locomotives, which immediately followed this subsection, was repealed 4-19-2005 by Ord. No. 21-05.

§ 535-3. Exceptions to anti-idling policy.

The Board of Health shall promulgate rules and regulations, subject to the approval of the County Council, that exempt the owner or operator of a diesel-powered motor vehicle or diesel-powered locomotive when certain conditions exist. Those exemptions shall include, but not be limited to:

- A. When a diesel-powered motor vehicle or diesel-powered locomotive is forced to remain motionless because of traffic conditions over which the operator has no control;
- B. When a diesel-powered motor vehicle or diesel-powered locomotive is being used as an emergency vehicle;
- C. When a diesel engine is providing power takeoff for refrigeration, lift gate pumps or other auxiliary uses, or supplying heat or air conditioning necessary for passenger comfort in those vehicles intended for commercial passenger transportation;
- D. When a diesel-powered motor vehicle or diesel-powered locomotive is being operated by a mechanic for maintenance or diagnostic purposes; or
- E. When a diesel-powered motor vehicle or diesel-powered locomotive is being operated solely to defrost a windshield.

§ 535-4. Enforcement; violations and penalties.

It shall be the responsibility of the Department of Health to enforce this chapter and its provisions. Violators shall receive a warning for their first offense, a penalty of \$100 for the second offense and a penalty of \$500 for the third offense. The Department may make recommendations to Council regarding further enforcement mechanisms for this policy, if appropriate.